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Case Number: 25NWCV02657 Hearing Date: August 6, 2026 Dept: L

Defendants Kaiser Foundation

Health Plan, Inc., Kaiser Foundation Hospitals and Southern California

Permanente Medical Group's Motion for Judgment on the Pleadings is DENIED as to the first, second, third, fifth, eighth, ninth, eleventh, twelfth, thirteenth, and fourteenth causes of action and is GRANTED with 30 days leave to amend as to the fourth, sixth, seventh, and tenth causes of action.

Defendants to give notice.

Background

This is an action for sexual assault. On July 22, 2025, Plaintiffs Jane Doe, by and through her Guardian ad litem, Thomas Halstead, and Thomas Halstead, an individual, ("Plaintiffs") filed this action against Defendants Kaiser Foundation Health Plan, Inc., Kaiser Foundation Hospitals, The Permanente Medical Group, Inc., Advanced Behavioral Health, Inc., Berenice Aceves, MS, BCBA, Japheth Baque StaJuana, and Does 1 to 100. The gravamen of the Complaint is that Plaintiff Jane Doe, a minor with a severe mental disability, was sexually assaulted by her medical providers over an indefinite period of time. On July 22, 2024, Plaintiff Thomas Halstead, Jane Doe's father, witnessed Defendants StaJuana and Does 1 to 33 sexually abuse Jane Doe during an appointment at their residence. The Complaint alleges the following causes of action:

1.

Sexual Battery (Civ. Code § 1708.5);

2.

Battery;

3.

Sexual Harassment (Civ. Code § 51.9);

4.

Negligent Hiring, Supervision, and Retention;

5.

Constructive Fraud (Civ. Code § 1573);

6.

Negligent Misrepresentation;

7.

Intentional Misrepresentation;

8.

Fraud by Concealment;

9.

Intentional Infliction of Emotional Distress;

10.

Negligent Infliction of Emotional Distress;

11.

Negligence;

12.

Breach of Contract;

13.

Unfair Business Practices (Bus. And Prof. Code § 17200); and

14.

Breach of Mandatory Duty (Failure to Report Suspected Child Abuse).

Defendants Kaiser Foundation Health Plan, Inc., Kaiser Foundation Hospitals and Southern California Permanente Medical Group (hereinafter, "Defendants") now move for judgment on the pleadings as to all causes of action in the Complaint.

Legal Standard

A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired. (Code Civ. Proc. § 438 subd. (f).) Except as provided by statute, the rules governing demurrers apply. (Civic Partners Stockton, LLC v. Youssefi (2013) 218 Cal.App.4th 1005, 1012.) "Like a demurrer, the grounds for the motion [for judgment on the pleadings] must appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Id. at p. 1013.) In ruling on a motion for judgment on the pleadings, "[a]ll allegations in the complaint and matters upon which judicial notice may be taken are assumed to be true." (Rippon v. Bowen (2008) 160 Cal.App.4th 1308, 1313.)

Meet and Confer

Under Code of Civil Procedure section 439 subdivision (a), the moving party shall meet and confer "in person, by telephone, or by video conference" with the party who filed the pleading to determine whether an agreement can be reached. (Code Civ. Proc. § 439, subd. (a).)

On March 13, 2026, the parties met and conferred via telephone regarding the issues in this Motion but were unable to come to a resolution. (Ryckman Decl., ¶ 2.) The Court finds the meet and confer requirement has been met.

Discussion

Intentional

Tort (1st, 2nd, 3rd) Causes of Action

Defendants argue that, even accepting the allegation that Defendant StaJuana was an employee of Defendants (which Defendants dispute), the FAC fails to plead that he was acting within the

course of his employment when he allegedly sexually assaulted Plaintiff Jane Doe. Defendants primarily cite to *Lisa M v. Henry Mayo Newhall Memorial Hospital* ("Lisa M.") (1995) 12 Cal. 4th 291, 296 in arguing that sexual misconduct falls outside of the course and scope of Defendant StaJuana's employment as a matter of law, such that his conduct cannot be imputed to Defendants. Defendants argue that they should not be held vicariously liable for the actions of Defendant StaJuana where the alleged assault arose from his "personal motives." (Mot., 11:2-4.)

In opposition, Plaintiffs note that the Complaint alleges multiple independent theories of agency, including actual agency, ostensible agency, and ratification. (See Compl., ¶¶ 14-31.) In other words, the Complaint does not only rely on respondeat superior liability based Defendant StaJuana's employment. Thus, even if Defendants' argument that Defendant StaJuana acted outside of the scope of his employment, such argument does not defeat Plaintiffs' claims. Plaintiffs suggest that, through the alternative theories of liability, Defendants can be held directly liable.

In reply, Defendants argue that it is unclear how they can be held directly liable for the intentional tort causes of action under an agency theory.

The Court first provides clarity regarding vicarious versus direct liability. "[T]wo doctrines may be implicated in assessing liability against an employer. One doctrine is respondeat superior, pursuant to which the employer is indirectly or vicariously liable for torts committed by its employees within the scope of their employment. [Citation.] The other doctrine is an agency theory pursuant to which an employer may be directly liable for acts of its agents. 'Vicarious liability based on the tort doctrine of respondeat superior and direct liability based on the theory of actual or ostensible agency are different liability theories which cases do not always distinguish between.' [Citation.]" (*Myers v. Trendwest Resorts, Inc.* (2007) 148 Cal.App.4th 1403, 1427.) "A claim is based on vicarious liability when a party free from fault is held liable for another party's acts or omissions. [Citation.] A claim is based on direct liability when a party is held liable for its own acts or omissions." (*Martin v. PacifiCare of California* (2011) 198 Cal.App.4th 1390, 1407.)

"[A] principal may be liable for the wrongful conduct of its agent, even if that conduct is criminal, in one of

three ways: (1) if the principal directly authorizes ... [the tort or] crime to be committed; (2) if the agent commits the tort in the scope of his employment and in performing service on behalf of the principal regardless of whether the wrong is authorized or ratified by [the principal, and even if the wrong is criminal; or (3) if the principal ratifies its agent's conduct after the fact by ... voluntar[ily] elect[ing] to adopt the [agent's] conduct ... as its own. (Doe v. Roman Catholic Archbishop of Los Angeles (2016) 247 Cal.App.4th 953, 969, internal quotations and citations omitted.)

The Court finds that, as to the intentional tort causes of action, the Complaint advances a theory of vicarious liability based on an employment and/or agency relationship. There is no indication that Defendants expressly authorized any wrongful conduct. Whether Defendants can be held vicariously liable thus depends on whether Defendant StaJuana was acting within the scope of his employment/agency.

However, to the extent the Complaint alleges that Defendants ratified Defendant StaJuana's alleged intentional torts, such liability is based on direct liability. (See Fischl v. Pacific Life Ins. Co. (2023) 94 Cal.App.5th 108, 129 ["A principal may implicitly 'ratify' the conduct of an agent—and thereby become liable for that conduct under the law—by accepting the benefits of that conduct with 'knowledge of the material facts.' . . . '[R]atification' of an agent's conduct is usually conceived of as rendering the principal 'directly' liable (rather than 'vicariously' liable for that conduct)."], internal citations omitted.)

The Court will next address Defendants' argument that they cannot be held vicariously liable as a matter of law because Defendant StaJuana acted outside of the scope of his employment/agency.

"The rule of respondeat superior is familiar and simply stated: an employer is vicariously liable for the torts of its employees committed within the scope of the employment." (Lisa M., supra, 12 Cal.4th at p. 296, citation omitted.) "Equally well established. . . is the principle that an employee's willful, malicious and even criminal torts may fall within the scope of his or her employment for purposes of respondeat superior, even though the employer has not authorized the employee to commit crimes or intentional torts." (Id. at pp. 296-297.) "While the employee . . . need not have intended to further the employer's interests, the employer will not be held liable for an assault or other intentional tort that did not

have a causal nexus to the employee's work." (Id. at p. 297.) "[T]he incident leading to injury must be an 'outgrowth' of the employment; the risk of tortious injury must be 'inherent in the working environment' or 'typical of or broadly incidental to the enterprise [the employer] has undertaken.'" (Id. at p. 298, citations omitted.) "California courts have also asked whether the tort was, in a general way, foreseeable from the employee's duties. . . The employment, in other words, must be such as predictably to create the risk employees will commit intentional torts of the type for which liability is sought." (Id. at p. 299.) The determination of whether an employee was acting within the scope of their employment is a question of fact to be decided by a jury. (Ibid.) However, when the facts are undisputed, it becomes a question of law. (Ibid.)

Here, the Complaint alleges that

Plaintiff Jane Doe "had an appointment with Defendants STAJUANA and DOES 1 through 33," and "[d]uring the appointment, JANE's father THOMAS HALSTEAD, who was present in the home, contemporaneously witnessed these Defendants sexually abuse and molest his 7-year old, disabled, daughter [...]." (Compl., ¶ 24.)

Further, the Complaint alleges that " [Defendant StaJuana] had been systematically grooming, molesting, and otherwise sexually assaulting young JANE since the beginning of their alleged care." (Compl., ¶ 25.) Defendant StaJuana was the agent of Defendants at all relevant times. (Compl., ¶¶ 29, 38, 54, 71.)

Accepting the allegations as true,

the Court finds that it is inappropriate at this stage to determine as a matter of law that Defendant StaJuana was not acting within the scope of his employment with Defendants. The Court finds that the Complaint, when read as whole, supports a reasonable inference that Defendant StaJuana's alleged sexual assault could have been a foreseeable outgrowth of his employment. The sexual assault occurred during Plaintiff Jane Doe's behavioral therapy appointment in Plaintiff's home. The Court is persuaded that the allegations support a causal nexus between Defendant StaJuana's employment and the alleged sexual assault such that Defendants could be vicariously liable.

The Complaint further alleges that,

when Defendants learned of Defendant StaJuana's "conduct and all of the material facts involved in the transaction, after it occurred. . . [Defendants] then approved the conduct." (Compl., ¶ 39, 55, 72.) The Court thus finds that, separate from the theory of vicarious liability based on employment/agency, the Complaint alleges an alternative theory of direct liability via ratification. Questions

of fact regarding Defendants' knowledge and subsequent ratification is not appropriate at this stage. The Court must accept the allegations as true.

Accordingly, the Motion for Judgment on the Pleadings is DENIED as to the first, second, and third causes of action.

Negligence

(4th, 6th, 11th) Causes of action as to
Plaintiff Thomas Halstead

Defendants argue that Plaintiff Thomas Halstead has no standing in his individual capacity to allege causes of action for negligent hiring/supervision/retention, negligent misrepresentation, and negligence because Defendants owed him no duty.

In opposition, Plaintiffs imply that Defendants owed a duty to Plaintiff Thomas Halstead by virtue of the healthcare agreements he entered into with Defendants for the case of Plaintiff Jane Doe. Plaintiffs argue that "[w]hether Kaiser owed duties directly to Thomas, whether Thomas reasonably relied upon Kaiser's representations, and whether he suffered independent injuries are factual questions that cannot be resolved on the pleadings." (Opp., 10:26-28.)

"[U]nless the defendant has assumed a duty to plaintiff in which the emotional condition of the plaintiff is an object, recovery is available only if the emotional distress arises out of the defendant's breach of some other legal duty and the emotional distress is proximately caused by that breach of duty. Even then, with rare exceptions, a breach of the duty must threaten physical injury, not simply damage to property or financial interests." (Potter v. Firestone Tire & Rubber Co. (1993) 6 Cal.4th 965, 985.) "Whatever the source of the duty of care (common law or statute), the economic loss rule bars negligence claims for pure monetary losses that 'arise from — or are not independent of — the parties' underlying contracts.' [Citation.] " (Terpin v. AT And T Mobility LLC (9th Cir. 2024) 118 F.4th 1102, 1116.)

"[D]amages for emotional distress are ordinarily not recoverable in an action for negligent misrepresentation when the injury other than the emotional distress is only economic." (Branch v. Homefed Bank (1992) 6 Cal.App.4th 793, 798.)

Reading the allegations as a whole, the Court is not persuaded the Defendants' owed any duty to Plaintiff Thomas Halstead separate from that which arose from his healthcare contracts, whereby Defendants were to provide care to Plaintiff Jane Doe. In other words, any breach of such contractual duties would not threaten any physical injury to Plaintiff Halstead where he was not treated by Defendants—i.e., the harm due to breach is only economic. Emotional damages based on such a breach is insufficient. The further Court agrees that Plaintiff Halstead's injuries are not properly distinguished from the injuries suffered by Plaintiff Jane Doe as to these causes of action.

Accordingly, the Motion for Judgment on the Pleadings is GRANTED as to the fourth, sixth, and eleventh causes of action to the extent they are alleged against Plaintiff Thomas Halstead with 30 days leave to amend.

Fraud (5th, 6th, 7th, 8th) Causes of Action

Defendants argue that the fraud-related causes of action are not alleged with the requisite particularity. Specifically, the Complaint fails to identify "from Kaiser made representations to them (and what the representations were) as well as their authority to speak on behalf of Kaiser, who they spoke to, what they said, or when such representations were made." (Mot., 12: 24-26.)

In opposition, Plaintiffs argue that the heightened pleading standard is "less rigidly where the facts concerning the alleged fraud are necessarily within the defendant's knowledge." (Opp., 7:27-28.) Plaintiffs assert that the causes of action are adequately alleged. Defendants are improperly attempting to seek dismissal just because "Plaintiffs cannot yet identify every individual involved in Kaiser's internal decision-making or every communication concerning provider selection, credentialing, and supervision." (Opp., 8:26-28.)

"The elements of fraud are (a) a misrepresentation (i.e., false representation); (b) scienter or knowledge of its falsity; (c) intent to induce reliance; (d) justifiable reliance; and (e) resulting damage." (Hinesley v. Oakshade Town Ctr. (2005) 135

Cal.App.4th 289, 294.) Negligent misrepresentation requires the same elements as intentional misrepresentation except for “knowledge of falsity.” (See *Apollo Capital Fund, LLC v. Roth Capital Partners, LLC* (2007) 158 Cal.App.4th 226, 243.)

It instead requires misrepresentation “without reasonable ground for believing it to be true.” (Ibid.) The facts constituting the alleged fraud must be alleged factually and specifically as to every element of fraud, as the policy of “liberal construction” of the pleadings will not ordinarily be invoked. (*Lazar v. Superior Court* (“*Lazar*”) (1996) 12 Cal.4th 631, 645.)

The Court thus finds that a heightened pleading standard applies for the intentional misrepresentation and negligent misrepresentation causes of action. Specifically, to properly allege fraud against a corporation, the plaintiffs must plead the names of the persons allegedly making the false representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157.) The Court is not persuaded by Plaintiffs’ argument that the identity of Defendants’ representatives is within the exclusive knowledge of Defendants, thereby relaxing the particularity requirement. Based on the Complaint, Defendants’ agents directly made certain misrepresentations to Plaintiffs, suggesting that those agents’ identities are not within the exclusive knowledge of Defendants. (See Compl., ¶¶ 125, 149.)

However, the Court finds that the heightened pleading standard does not apply to the fraudulent concealment and constructive fraud causes of action, as they are rooted in a theory of nondisclosure.

The elements for fraudulent concealment are as follows: 1) defendant concealed or suppressed a material fact, 2) defendant was under a duty to disclose the fact to the plaintiff, 3) defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, 4) plaintiff was unaware of the fact and would not have acted in the same way knowing of the concealed or suppressed fact, 5) causation, and the plaintiff sustained damage. (See *Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 868; see also *Lovejoy v. AT&T Corp.* (2001) 92 Cal.App.4th 85, 96; *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 748.)

Constructive fraud requires “(1) a fiduciary relationship, (2) nondisclosure, (3) intent to deceive, and (4) reliance and resulting injury. Constructive fraud is any breach of duty that, without fraudulent intent, gains an advantage to the person at fault by misleading another to his prejudice. [Citations.] Like an action for fraud, constructive fraud must be pled with specificity.” (Tindell v. Murphy (2018) 22 Cal.App.5th 1239, 1249–1250.)

The rule of specifically pleading how, when, where, to whom, and by what means, misrepresentations were communicated, applies to affirmative misrepresentations, not to concealment. (See *Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1384.)

The Court thus finds that the fraudulent concealment and constructive fraud causes of action are adequately pled.

Accordingly, the Motion for Judgment on the Pleadings is GRANTED with 30 days leave to amend as to the sixth and seventh causes of action, and is DENIED as to the fifth and eighth causes of action.

Emotional
Distress (9th and 10th) Causes of Action

“The elements of a prima facie case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009, citation and ellipses omitted.)

“The law of negligent infliction of emotional distress in California is typically analyzed by reference to two theories of recovery: the ‘bystander’

theory and the 'direct victim' theory. The negligent causing of emotional distress is not an independent tort, but the tort of negligence. The traditional elements of duty, breach of duty, causation, and damages apply. Whether a defendant owes a duty of care is a question of law." (Spates v. Dameron Hosp. Ass'n ("Spates") (2003) 114 Cal.App.4th 208, 213, ellipses, quotation marks, brackets, and paragraph breaks omitted.)

As to the intentional infliction of emotional distress (IIED) cause of action, Defendants argue that the Complaint fails to allege any extreme and outrageous conduct by Defendants that was done with the intent to cause Plaintiffs emotional distress.

As to the negligent infliction of emotional distress (NEID) cause of action, Defendants argue that such claim "is only contemplated in cases where a plaintiff's only damages are for emotional distress." (Mot., 14:5-7.) Defendants cite CACI No. 1620. Such claim is foreclosed here, where Plaintiffs also allege physical injuries. (See Compl., ¶¶ 94, 118, 142, 166, 193, 209, 230, 244, 276, and 293.)

The Court finds that the IIED cause of action re-allege and incorporate all prior allegations. (Compl., ¶¶ 199.) At this stage, the Court is satisfied that the Complaint alleges Defendants' extreme and outrageous conduct based on the intentional torts alleged. The Court finds that, for reasons discussed under the intentional torts section, the allegations are sufficient to allege a cause of action for IIED based on vicarious or direct liability. (See Compl., ¶¶ 204-205 [agency and ratification allegations].)

As to the NEID cause of action, the Court notes that NEID is not an independent tort. (See Spates, supra, 114 Cal.App.4th at p. 213.) Here, the Complaint alleges that Plaintiffs suffered physical injuries: "Plaintiffs suffered physical injuries to their bodies as well as shock and injury to their nervous systems and persons, all of which have caused great physical, mental, and nervous pain and suffering as well as mental anguish, terror, anxiety, and emotional distress." (Compl., ¶¶ 230, 244 [regarding NEID and negligence causes of action].) As to Plaintiff Jane Doe, the NEID cause of action is duplicative of the negligence cause of action—if Plaintiff Jane Doe prevails on her negligence cause of action, she may be entitled to damages for the emotional consequences of the physical harm.

As stated earlier, the Court is not persuaded that Defendants owed Plaintiff Thomas Halstead a duty solely by virtue of his contracts with Defendants. However, the Court finds that the NEID cause of action may still be viable as to Plaintiff Halstead based on a “bystander” theory—i.e., a different theory of duty. (See *Spates v. Dameron Hospital Assn.* (2003) 114 Cal.App.4th 208, 213 [“The bystander theory recognizes a duty in the limited class of cases where a plaintiff ‘(1) is closely related to the injury victim, (2) is present at the scene of the injury-producing event at the time it occurs and is then aware that it is causing injury to the victim and, (3) as a result suffers emotional distress beyond that which would be anticipated in a disinterested witness.’ [Citation.]”].)

The Court will allow Plaintiffs to amend the Complaint regarding these deficiencies, where it is unclear what specific injuries Plaintiff Halstead suffered.

Accordingly, the Motion for Judgment on the Pleadings is DENIED as to the ninth cause of action and is GRANTED with 30 days leave to amend as to the tenth cause of action.

Twelfth

Cause of Action – Breach of Contract

Defendants argue that the breach of contract cause of action fails to the extent it is alleged by Plaintiff Jane Doe. The Complaint fails to allege that either 1) Plaintiff Jane Doe and Defendants entered into a contract, or 2) that Plaintiff Thomas Halstead entered into the contracts on her behalf.

In opposition, Plaintiffs argue that the Complaint adequately alleges that Plaintiff Thomas Halstead entered into contracts with Defendants whereby Plaintiff Jane Doe was the intended beneficiary. (Compl., ¶ 14.) Under Civil Code section 1559, Plaintiff Jane Doe can enforce such contracts as a beneficiary.

“A contract, made expressly for the benefit of a third person, may be enforced by him at any time before the parties thereto rescind it.” (Cov. Code, § 1559.)

The Court finds that Plaintiff Jane Doe has standing to enforce the subject healthcare contracts. The Complaint alleges the following:

“Beginning

in or around July 2022, JANE’s father THOMAS HALSTEAD and Defendants PLAN, HOSPITAL, GROUP, ABH, ACEVES, STAJUANA, and DOES 1 through 100, and each of them, began to enter into a series of contracts. A motivating purpose of THOMAS HALSTEAD and Defendants PLAN, HOSPITAL, GROUP, ABH, ACEVES, STAJUANA, and DOES 1 through 100, and each of them, was for minor JANE to benefit from the contracts. And JANE was in fact a beneficiary of the contracts, as she was eligible to participate and did receive healthcare services from Defendants and their agents.”

(Compl., ¶ 14; see also ¶ 252.)

Accordingly, the Motion for Judgment on the Pleadings is DENIED as to the twelfth cause of action.

Thirteenth

Cause of Action – Unfair Business Practices

California’s Unfair Competition Law

(“UCL”) prohibits unlawful, unfair, or fraudulent business acts or practices. (Bus. & Prof. Code, § 17200.) Section 17200’s “unlawful” prong “borrows violations of other laws. . .and makes those unlawful practices actionable under the UCL.” (Klein v. Chevron U.S.A., Inc. (2012) 202 Cal.App.4th 1342, 1383.) “[V]irtually any law or regulation—federal or state, statutory or common law—can serve as [a] predicate for a . . .[section] 17200 ‘unlawful’ violation.” (Ibid.) “A business practice is “fraudulent” within the meaning of section 17200 if it is “likely to deceive the public.” (Id. at 1380.) A business practice is “unfair” within the meaning of the UCL if it violates established public policy or if it is immoral, unethical, oppressive, or unscrupulous and causes injury to consumers which outweighs its benefits. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1407–1408.)

To plead this statutory claim, the pleadings must state with reasonable particularity the facts supporting the statutory elements of the violation. (Khoury v. Maly’s of California, Inc. (1993) 14 Cal. App. 4th 612, 619.)

Defendants argue that Complaint fails to allege any unfair, unlawful, or fraudulent business practice with the requisite particularity. For example, the Complaint fails “to identify any specific constitutional, statutory, or regulatory provision to which their claim is tethered.” (Mot., 15:26-27.) Further, the Complaint fails to allege any repeated, ongoing violations that would constitute an unfair business practice.

In opposition, Plaintiffs argues that they have adequately alleged a violation under the UCL. Specifically, the Complaint alleges that Defendants committed certain unfair, unlawful, and fraudulent acts as demonstrated by the other causes of action.

Firstly, the Court acknowledges that an unfair business practice may consist of “repeated violations of statute by acts which constituted a principal part of [a party’s] business.” (People v. Casa Blanca Convalescent Homes, Inc. (1984) 159 Cal.App.3d 509, 526, overruled on other grounds by Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co. (1999) 20 Cal.4th 163.) However, case law has clarified that a single act may suffice under the UCL. (See Wilner v. Sunset Life Ins. Co. (2000) 78 Cal.App.4th 952, 965 [finding that “[a] single instance of” unlawful, unfair, or fraudulent “conduct may suffice”]; see also Podolsky v. First Healthcare Corp. (1996) 50 Cal.App.4th 632, 653- 654 [“That section was amended in 1992, however, to state that it applies to any unlawful ‘act or practice,’ presumably permitting invocation of the [UCL] based on a single instance of unfair conduct.”].)

The Court finds that the UCL cause of action is adequately alleged as it can be predicated on the other causes of action that were previously held sufficient.

Accordingly, the Motion for Judgment on the Pleadings is DENIED as to the thirteenth cause of action.

Fourteenth
Cause of Action – Breach of Mandatory Duty (CANRA)

“[Child Abuse and Neglect Reporting Act] sets forth several different reporting requirements once child abuse or

neglect is suspected. [citing Penal Cde, § 11166.] Certain types of professionals known as 'mandated reporters' [citing Penal Code, § 11165.7] 'shall' report to law enforcement agencies or county welfare departments any known or suspected instance of child abuse or neglect. [citing Penal Code, §§ 11165.9, 11166, subd. (a).]" (B.H. v. Cnty. of San Bernardino (2015) 62 Cal.4th 168, 178.)

Defendants argue that, if their employees are mandated reporters under CANRA, there is nothing in the statute indicating that they can be held vicariously liable for their employees' failure to report. Further, the Complaint fails to allege that "any employee of Kaiser, in their professional capacity or within the scope of their employment, had knowledge of or observed Mr. StaJuana abusing or neglecting a child." (Mot., 16:25-27.)

In opposition, Plaintiffs argue that the Complaint adequately alleges that Defendants had or should have had a reasonable suspicion that Plaintiff Jane Doe was being sexually abused, but failed to report under CANRA. (Compl., ¶¶ 283-287.)

The Court finds that Defendants cite no authority that they cannot be held vicariously liable for their employees' alleged failure to report under CANRA. Further, other cases have held that school districts have been held vicariously liable for their employees' failure to report under CANRA via a negligence per se theory. (See e.g., *Roe v. Hesperia Unified Sch. Dist.* (2022) 85 Cal.App.5th 13, 32; *Alejo v. City of Alhambra* (1999) 75 Cal.App.4th 1180, 188-89, disapproved on another ground in *B.H. v. County of San Bernardino* (2015) 62 Cal.4th 168, 186.) Although this case involves medical employers and medical provider employees, those cases support a finding that Defendants may be held vicariously liable for their employees' failure to report under CANRA.

The Court next addresses Defendants' argument that the Complaint fails to allege that their employees had knowledge of Plaintiff Jane Doe's sexual abuse or observed any such abuse.

CANRA states the following: "[A] mandated reporter shall make a report to an agency specified in Section 11165.9 whenever the mandated reporter, in the mandated reporter's professional capacity or

within the scope of the mandated reporter's employment, has knowledge of or observes a child whom the mandated reporter knows or reasonably suspects has been the victim of child abuse or neglect." (Penal Code, § 11166, subd. (a), emphasis added.) "'Reasonable suspicion' does not require certainty that child abuse or neglect has occurred nor does it require a specific medical indication of child abuse or neglect; any 'reasonable suspicion' is sufficient." (Id. at subd. (a)(1).)

Here, the CANRA cause of action alleges that Defendants and Does 34 to 100 were mandated reporters under CANRA and "had or should have had a reasonable suspicion that Defendants STAJUANA and DOES 1 through 33, and each of them, were engaged in the sexual abuse of minor JANE, yet failed to report the suspected abuse." (Compl., ¶¶ 284-285.) The Court agrees with Plaintiffs that the issue of whether Defendants possessed the requisite knowledge or reasonable suspicion is factual in nature. At this stage, such allegations are sufficient.

Accordingly, the Motion for Judgment on the Pleadings is DENIED as to the fourteenth cause of action.